

On January 7, 2026, Petitioner filed a Request for Order (RFO) seeking a stay on proceedings pending appeal. The RFO was served on March 4th, however the Notice of Tentative Ruling was not served. The court finds the RFO to be late served pursuant to Civil Procedure section 1005(b) which states moving papers must be filed and served at least sixteen court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c made February 25th the last day to serve the RFO and all other required documents.

Despite the defect in service, Respondent filed and served a Responsive Declaration to Request for Order on March 5th.

Petitioner filed and served her Reply Declaration on March 12th.

Respondent filed a Supplemental Declaration on March 16th. There is no Proof of Service for this document therefore the court cannot consider it.

Petitioner is requesting a stay on the trial court proceedings pending a resolution of the appeal.

Respondent opposes the request, arguing that the issue is moot. He requests sanctions in the amount of \$750.

Generally speaking, the filing of an appeal does not automatically stay proceedings on the issues of custody and visitation. Cal. Civ. Pro. § 917.7. Such a stay is solely within the discretion of the trial court. *Id.*

Here, the court does not find grounds to stay proceedings pending a decision on the appeal. Especially where, as here, Petitioner concedes that her request is merely procedural in nature. The request for a stay is denied.

The request for sanctions is also denied. Family Code section 271 states, in pertinent part, “...the court may base an award of attorney’s fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys.” Fam. Code § 271(a). Here, the RFO was filed by Petitioner on a matter that was in dispute between the parties. The court does not find that such a filing was solely to frustrate the policy of the law. Accordingly, the request for sanctions is denied.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE REQUEST FOR A STAY IS DENIED. THE REQUEST FOR SANCTIONS IS DENIED. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH) HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.